

Mohammad Swale Wahid Husain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 November 2019 · Writ-C No. 36821 of 2019 · Writ-C No. 36821 of 2019 · **Writ dismissed as not maintainable for Clause 6.5 alternative remedy.**

HEADNOTE

A writ seeking to quash recovery of interest and recovery charges under a demand notice is not maintainable where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies an alternative remedy. After the petitioner failed to rebut the licensee's objection, the Division Bench dismissed the petition as not maintainable.

FACTUAL SUMMARY

Mohammad Swale Wahid Husain approached the Allahabad High Court by writ petition seeking certiorari to quash recovery proceedings initiated against him pursuant to a demand notice dated 9 September 2019 issued by respondent no. 2 for Rs. 1,18,432 towards interest and recovery charges, and a mandamus restraining the respondents from harassing or pressurising him in pursuance of that notice. Counsel for the Electricity Department appeared and opposed maintainability.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy under Clause 6.5

HOLDING

A writ petition challenging recovery of interest and recovery charges under a demand notice is not maintainable when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes an alternative remedy; the petition is dismissed as not maintainable on that ground. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE DEMAND NOTICE DATED 09.09.2019 AND OF THE RECOVERY OF INTEREST AND RECOVERY CHARGES

Dismissed on maintainability; merits of the demand and recovery were not examined. ¶ 1